

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Mr. Justice Muhammad Hashim Khan Kakar
Mr. Justice Salahuddin Panhwar
Mr. Justice Ishtiaq Ibrahim

**Jail Petition No.136/2025 and Criminal Petitions
No.575, 679 & 756 of 2025**

(On appeal against the Judgment dated 27.03.2025 passed by the Islamabad High Court, Islamabad in Criminal Appeals No.211/23, 212/23, 228/23, 209/23 and Murder Reference No.10/23)

Aftab Zafar	(in J.P.136/2025)
Hamza Jahangir	(in CrI.P.L.A.No.575/2025)
Muhammad Yasir	(in CrI.P.L.A.No.679/2025)
Mukhtar Ahmad Khan Rathore	(in CrI.P.L.A.No.756/2025)

...Petitioner(s)

VERSUS

The State	(in J.P.136/2025)
The State thr A.G. Ibd. & another	(in CrI.P.L.A.No.575 & 679 of 2025)
Asad Mumtaz and another	(in CrI.P.L.A.No.756/2025)

...Respondent(s)

For the Petitioner(s):	Ch. Abdul Aziz, ASC a/w Rana Kashif Saleem (in J.P.136/2025)
	Mr. Ansar Nawaz Mirza, ASC a/w Syed Rifaqat Hussain Shah, AOR (in CrI.P.L.A.No.575/2025)
	Mr. M. Shahid Kamal, ASC (in CrI.P.L.A.No.679/2025)

For the Complainant(s):	Raja M. Shafat Khan, ASC a/w Complainant (in-person)
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For the State:	Mr. Adnan Ali, D.D.P.P., Islamabad.
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Assisted By:	Ms. Tayyaba Munir, Law Clerk
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Date of hearing:	02.03.2026
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JUDGMENT

Ishtiaq Ibrahim, J.- This consolidated judgment shall govern Jail Petition No.136 of 2025, instituted by Aftab Zafar, Criminal Petitions for Leave to Appeal No.575 & 679 of 2025, preferred by Hamza

Jahangir and Muhammad Yasir, respectively, as well as Criminal Petition for Leave to Appeal No.756 of 2025, filed by the complainant Mukhtar Ahmad Khan Rathor, against the common judgment dated 27.03.2025 ('impugned judgment'), rendered by the learned Islamabad High Court, Islamabad ('the High Court'), in Criminal Appeals No. 228, 209, 211, and 212 of 2023, whereby the convictions and sentences of death awarded to the petitioners, namely, Aftab Zafar, Hamza Jahangir, and Muhammad Yasir, and acquittal of respondent-accused Asad Mumtaz, recorded by the Additional Sessions Judge-I, Islamabad (East), were maintained. Since all the petitions emerge from the same transaction, a shared set of facts and against a common impugned judgment, they are being disposed of through this single judgment.

2. The factual matrix of the prosecution's case is that on 21.12.2019, complainant Mukhtar Ahmad Khan Rathore (PW.1), moved an application (Exh.PA) before the SHO PS Bara Kahu, regarding missing of his five-year-old son, Umar Rathore since 04.00 p.m wearing brown colour pant shirt and leather jacket of the same colour. Despite concerted efforts by the complainant, his relatives, and the police, including the dissemination of wireless messages to various stations, hospitals, and Edhi centers, no clue of the minor was found. On 23.12.2019, the complainant preferred a supplementary statement (Exh.PB) to the SHO, nominating therein the petitioners, namely, Hamza Jahangir (aged 20 years), Aftab Zaffar (aged 21 years), Muhammad Yasir (aged 25 years), and Asad Mumtaz (aged 21 years), as accused for the abduction of his minor son. A subsequent search revealed that all the accused have fled their respective residences, including Hamza Jahangir and Asad Mumtaz who were living in the same street as the complainant. On 24.12.2019, Aftab Zaffar was produced at the police station by his father, a police constable, who narrated the occurrence aiding the subsequent arrest of Muhammad Yasir, Asad Mumtaz and Hamza Jahangir. During a personal search of Yasir, a key (Exh.P31) and a mobile phone (Exh.P32) were recovered. During the investigative process, all four petitioners-convicts were interrogated separately and independently, yet each provided same disclosures regarding their involvement and the occurrence narrating that they had

kidnapped the victim in Hamza Jahangir's vehicle with the intent to demand ransom, utilizing ground-floor portion of a house in Mohallah Sattian, Dhoke Jillani, which Aftab Zaffar had rented for this specific purpose from the landlady, Naheed Bibi (PW.5). They further stated that feeling cornered by the intensifying police search and the victim's persistent cries, petitioners abandoned their ransom plan and resolved to kill the minor. On 22.12.2019, the petitioners murdered minor Umar Rathore by gagging him with cloth and securing his limbs with tape. Following his arrest, petitioner-convict Muhammad Yasir on 24.12.2019 led the police party to the rented premises. Using the key previously recovered from him, the investigating officer [PW.18] gained entry to a residential room where the dead body of Umar Rathore deceased was discovered concealed within a wooden almirah. The body was found with the face, hands, and legs wrapped in tape.

3. During spot inspection, the Investigating Officer recovered cigarette butts and latent fingerprints. The subsequent DNA analysis by the Punjab Forensic Science Agency (PFSA) verified the presence of Muhammad Yasir and Hamza Jahangir at the site. Reports from the National Forensic Science Agency (NFSA) identified multiple fingerprints belonging to Hamza Jahangir, Aftab Zafar, and Muhammad Yasir on items recovered from the premises. During the course of the investigation, petitioner Hamza Jahangir voluntarily appeared before the magistrate to record a formal confession under Section 164 Cr.P.C in which he provided a detailed account of the entire occurrence.

4. After completion of investigation, a report under section 173 Cr.P.C. was submitted against the petitioners-convicts before the Trial Court where they were formally charge sheeted to which they pleaded not guilty and claimed trial. To prove its case, the prosecution produced twenty-five witnesses. After closure of the prosecution's evidence, statements of the appellants were recorded under Section 342 Cr.P.C., wherein they denied the prosecution's allegation and professed their innocence. On conclusion of trial, the Trial Court found the evidence brought on record by the prosecution sufficient to convict Hamza Jahangir, Aftab Zafar and Muhammad

Yasir. However, extending benefit of doubt to petitioner Asad Mumtaz he was acquitted. The convictions were challenged by the petitioners-convicts before the learned High Court by filing appeals, but the same were dismissed through the impugned judgment.

5. Learned counsel for the petitioners contended that the prosecution has gravely misapplied the provisions of Article 40 of the Qanun-e-Shahadat Order, 1984, as the so-called “disclosures” attributed to the petitioners do not qualify as legally admissible discoveries. It was argued that the entire case rests upon information which had already come into the knowledge of the police through Aftab Zafar, who was initially produced not as an accused but merely as a person “having information” regarding the occurrence. According to the record, it was during this initial interaction that the foundational facts of the alleged offence, including the involvement of co-accused and the location of the premises, were disclosed. In such circumstances, any subsequent recovery effected at the pointation of the petitioners is rendered legally inconsequential, being merely a reiteration of pre-existing knowledge rather than a fresh discovery as contemplated by law. Learned counsel for the petitioners further contended that although the landlady [PW5] alleged that the premises from which the body was recovered had been rented out to one of the accused Aftab Zafar, no documentary evidence, such as a rent agreement or any record of tenancy, was produced to substantiate this claim, thereby rendering such assertion legally uncorroborated and unreliable. Learned counsel further assailed the evidentiary value of the judicial confession, submitting that the same is tainted by unexplained and inordinate delay. Despite the petitioner Hamza Jahangir having allegedly made disclosures at an earlier stage, no immediate effort was made to record the confession before a Magistrate, and even after the application was moved on 02.01.2020, the accused was produced after a further delay on 06.01.2020. Such a confession, recorded while the accused remained under the influence and shadow of police custody, cannot be regarded as voluntary or spontaneous, and therefore lacks the probative force required, particularly for conviction.

6. Conversely, the learned Deputy District Public Prosecutor, Islamabad, assisted by learned counsel for the complainant, while controverting the submissions advanced on behalf of the petitioners-convicts, contended that the prosecution has successfully established the guilt of the petitioners-convicts and acquitted co-accused through a chain of cogent, consistent, and confidence-inspiring circumstantial evidence, each link of which is so firmly connected that it forms an unbroken sequence leading from the occurrence to the culpability of the petitioners-convicts and acquitted co-accused, one end touching the dead body of the minor deceased and the other fastening unequivocally upon the petitioners-convicts. They further argued that the acquittal of co-accused Asad Mumtaz is founded merely on conjectures and surmises, hence, liable to be reversed.

7. We have heard the arguments advanced at the bar and perused the record, evidence and the judgments of the courts below with the able assistance of learned counsel for the parties.

8. Admittedly, the complainant Mukhtar Ahmad Khan Rathore (PW-1), father of the minor deceased, is not an eyewitness to the occurrence of kidnapping and subsequent murder of his son nor any other person has appeared to furnish an ocular account of the unfortunate incident. The prosecution case, rests entirely upon circumstantial evidence. It is settled principle of law that conviction can be safely recorded on the basis of circumstantial evidence, provided that each incriminating circumstance is proved independently through reliable and unimpeachable evidence, and all such circumstances, when taken together, form a complete and unbroken chain which is so interlinked that it leaves no room for any hypothesis consistent with the innocence of the accused. It is equally well settled that if there is any missing link in the chain of circumstances, or if any circumstance is found to be incompatible with the guilt of the accused or capable of an alternative interpretation favourable to him, the benefit thereof must go to the accused. However, where the chain of evidence is found to be complete, coherent, and confidence-inspiring, leading to a moral certainty that the offence has been committed by the accused and

none else, such circumstantial evidence is as good and potent as direct evidence and is sufficient to sustain a conviction.

9. The record reflects that the minor deceased went missing on 21.12.2019 at about 04:00 p.m., whereupon his father/complainant Mukhtar Ahmad Khan Rathore (PW-1), promptly reported the matter to the SHO, Police Station Bara Kahu. No doubt, in his initial report he did not nominate anyone but this shows his bona fide that he was not inclined to involve any person falsely in random or out of ulterior motive. Had there been any prior enmity or ill-will of the complainant with the petitioners-convicts, he could have been nominated them at the first instance. He nominated the petitioners-convicts in his supplementary statement on the next day with due explanation. On 24.12.2019, one Zafar Iqbal produced his son, Aftab Zafar (petitioner-convict), before the Investigating Officer, Asif Riaz SI (PW-18), who disclosed the details of the abduction and subsequent murder of the minor deceased along with co-convicts/petitioners. On his disclosure, the remaining petitioners-convicts were also arrested. During personal search of petitioner-convict Muhammad Yasir, a key (Exh.P-31) and a mobile phone (Exh.P-32) were recovered. The petitioners-convicts made disclosures admitting their involvement in the commission of offence and stated that they had abducted the minor in a vehicle belonging to petitioner-convict Hamza Jahangir with the object of demanding ransom from his father, and had confined him in the ground-floor portion of a house situated in Mohallah Sattian, Dhoke Jillani, which had been rented by petitioner-convict Aftab Zafar from the landlady, Naheed Bibi (PW-5). They further disclosed that, being alarmed by the intensifying police efforts and consistent cries of the minor, they abandoned their plan of ransom and on 22.12.2019, committed murder of the minor deceased by gagging his mouth with cloth and fastening his limbs with tape. On 24.12.2019, petitioner-convict Muhammad Yasir led the police party to the said rented premises and, using the key recovered from him, facilitated entry into the room from where the dead body of the minor deceased was recovered from a wooden almirah, in a concealed condition, with his face, hands, and feet wrapped in tape. The medical evidence furnished by Dr. Imtiaz Ahmed (PW-11), supports the version of the

Investigating Officer. He conducted postmortem examination of the deceased and vide post-mortem report (Exh.PFF/1-6) confirmed that the mouth of the deceased was stuffed with cloth and secured with tape. The other petitioners-convicts also separately pointed out the place of occurrence and recovery and in this regard pointation memo was prepared.

10. Mst. Naheed Bibi (PW-5), the landlady of the premises in question, deposed that she had rented out the lower portion of her house to petitioner-convict Aftab Zafar on 26.11.2019 at a monthly rent of Rs.12,000/-. She further stated that on 22.12.2019, one of Aftab's associates, namely Muhammad Yasir, approached her for charging a mobile phone on the pretext that its battery had been exhausted. She also confirmed that on 24.12.2019, between 03:00 p.m. and 04:00 p.m., police officials visited her house and effected recovery of the dead body of minor Umar Rathore from the said premises. The testimony of this witness carries significant probative value, being that of a natural and independent witness, having no apparent animus, ill-will, or ulterior motive against the petitioners-convicts. Despite lengthy cross-examination, the defence failed to elicit anything to impeach her credibility or to suggest that she was in any manner interested or biased.

11. During the spot inspection, the Investigating Officer (PW-18) recovered various articles, which were taken into possession vide recovery memo (Exh.PG). These included finger print cards (Exh.P-2/1-3), white pillows (Exh.P-3/1-2), a broken black jacket belonging to the deceased, a mattress, quilt and pillow lying on the floor, two glass droppers, multiple used cigarette butts, an empty plastic bottle, rolls of adhesive tape (used and unused), a pair of blue shoes of the deceased, eatable wrappers, and other miscellaneous items. The recovered articles, particularly the cigarette butts and glass items, were duly secured and sent to the National Forensic Science Agency (NFSA) and the Punjab Forensic Science Agency (PFSA) for DNA profiling and finger print analysis. As per the report of PFSA (Exh.PKKK/1-4), the DNA extracted from the cigarette butts matched with that of the petitioners-convicts, inasmuch as multiple cigarette butts were found to contain the DNA profiles of petitioners-

convicts Muhammad Yasir and Hamza Jahangir. Likewise, the report of NFSA (Exh.PLLLL/1-2) confirms that the finger impressions lifted from the glass items corresponded with the finger prints of petitioner-convict Hamza Jahangir, while further analysis reflected matching impressions of the other petitioners-convicts, namely Aftab Zafar and Muhammad Yasir. No DNA profile or finger print impression of the acquitted co-accused Asad Mumtaz was detected on any of the recovered articles. The forensic evidence, therefore, provides strong corroboration to the prosecution case, as it firmly connects the petitioners-convicts with the place of occurrence and lends independent scientific support to the chain of circumstantial evidence, in line with the settled principles governing reliance on modern forensic techniques in criminal adjudication.

12. Bilal Ahmed (PW-6), a shopkeeper, deposed that petitioner-convict Aftab Zafar had purchased solution tape from his shop about a week prior to the police visit, thereby lending support to the prosecution case regarding procurement of incriminating material used in the commission of the offence. Gul Zeb (PW-7), proprietor of Al-Madina General Store, stated that the police had brought petitioner-convict Muhammad Yasir to his shop, whereupon he identified him as the same person who had earlier purchased biscuits, nimko, and chips from his store; although he conceded in cross-examination that petitioner Muhammad Yasir was not previously known to him but he identified to be the same person who had purchased the aforesaid items from his shop. Similarly, Sahibzada Muhammad Ilyas (PW-8), another shopkeeper, identified petitioner-convict Aftab Zafar and deposed that he had purchased mango juice, biscuits, and nimko from his shop. Muhammad Amir (PW-9), also a shopkeeper, identified petitioners-convicts Aftab Zafar and Hamza Jahangir and stated that both had visited his shop, purchased shawarma, consumed the same there, and thereafter entrusted him with two mobile phones along with chargers as *amanat*. He further clarified that both accused were his regular customers. The aforesaid shopkeepers are independent witnesses, and their consistent and unshaken testimony constitutes an incriminating circumstance which duly connects the articles recovered from the place of occurrence with the petitioners-convicts,

establishing that the said items were, in fact, purchased by them from the respective shops, thereby further strengthening the chain of circumstantial evidence relied upon by the prosecution.

13. In view of the evidence brought on record and discussed hereinabove, we are of the considered view that the prosecution has successfully established a coherent, consistent, and confidence-inspiring chain of circumstances which connects the petitioners-convicts with the commission of the offence. The recovery of the dead body of the minor deceased at the pointation of petitioner-convict Muhammad Yasir is duly corroborated by the testimony of Mst. Naheed Bibi (PW-5), the landlady of the premises, who has categorically deposed that the said portion of the house was rented out to the petitioners-convicts thereby establishing their exclusive possession, access, and control over the place of occurrence. Likewise, the forensic evidence in the shape of DNA profiling and finger prints analysis conclusively links the petitioners-convicts with the cigarette butts and other recovered articles from the place of occurrence, thereby scientifically confirming their presence at the relevant time and place where the minor deceased was done to death. All the evidence discussed above, when taken cumulatively and assessed in their entirety, form an unbroken and indivisible chain, the one end whereof unmistakably touches the dead body of the deceased and the other firmly fastens upon the neck of the petitioners-convicts, leaving no reasonable hypothesis of innocence. The learned Courts below, having appreciated the evidence in its correct perspective and in consonance with the settled principles governing circumstantial evidence, have rightly arrived at the conclusion of guilt, which calls for no interference.

14. As regards conviction of the petitioners-convicts under 364-A PPC, the same is based on proper appreciation of the evidence on record. The recovery of the deceased child at the pointation of the petitioners-convicts reasonably establishes that the minor was unlawfully abducted from the custody of his parents and subsequently done to death. The grounds urged by the learned counsel for the petitioners-convicts regarding some aspects of the prosecution's evidence, though create some doubt, but not of the

magnitude so as to warrant acquittal of the petitioners-convicts, however, the same can be taken into consideration in the matter of sentence. It is settled law that doubt, if any, emerging from the prosecution evidence is not so profound as to demolish the entire case or justify an outright acquittal; however, it does constitute a relevant mitigating factor for the purpose of determining the quantum of sentence. It is by now well settled, as held in *Mst. Bevi v. Ghulam Shabbir* (1980 SCMR 859), *Mawaz Khan v. Ghulam Shabbir* (NLR 1995 Cr. 17), *Mir Muhammad alias Miro v. The State* (2009 SCMR 1188), and *Falak Sher v. The State* (NLR 2000 Cr. 188), that the principle of benefit of doubt is not confined to the question of guilt alone but extends to the question of sentence as well, particularly in capital cases where the choice lies between death and life imprisonment. Where the prosecution case suffers from absence of a definite motive, unexplained inconsistencies, or circumstances generating uncertainty regarding the true genesis of the occurrence, such factors, though insufficient to discredit the conviction, assume importance as mitigating considerations warranting judicial caution in awarding capital punishment. Having examined the record in its entirety, we are of the considered view that although the prosecution has succeeded in establishing the guilt of the petitioners-convicts beyond reasonable doubt, yet the evidence is not entirely free from infirmities and inconsistencies which, though not fatal to the prosecution case, do generate what may be termed as residual doubt. Such residual doubt does not undermine the conviction but operates within the sentencing domain as a weighty mitigating circumstance, particularly in cases involving the extreme penalty of death. It is a settled principle that capital punishment is to be awarded only in the rarest of rare cases and where no alternative is reasonably available. The concept of residual doubt, lying between reasonable doubt and absolute certainty, therefore, calls for heightened judicial circumspection at the stage of sentencing. Even where guilt is established in accordance with law, the existence of such lingering doubt militates against the imposition of the death penalty, as it introduces a measure of caution in view of the irreversible nature of the punishment. In these circumstances, the ends of justice would be adequately served by awarding a lesser

sentence rather than the extreme penalty of death to the petitioners-convicts.

15. For what has been discussed above, Jail Petition No. 136 of 2025 instituted by petitioner-convict Aftab Zafar, Criminal Petitions No. 575 & 679 of 2025, filed by petitioners-convicts Hamza Jehangir and Muhammad Yasir, are converted into appeals and partly allowed. Their conviction recorded by the courts below are maintained, however, their death sentence is commuted into imprisonment for life. The appellants-convicts shall pay compensation in sum of Rs. 5,00,000 each to the legal heirs of the deceased u/s 544-A Cr.P.C and in case of default to further undergo a period of 6 months S.I. The substantive sentences of imprisonment under both the offences shall run concurrently and benefit of section 382-B, CrPC is extended to them.

Criminal Petition No.756/2025

16. The findings of acquittal of respondent-accused are based on proper appreciation of evidence to which no exception can be taken. Accordingly, this petition is dismissed and leave to appeal is refused.

Judge

Judge

Judge

Announced on _____ in Open Court at Islamabad

Judge

APPROVED FOR REPORTING

M.Siraj SPS/Tayyaba Munir, Law clerk